Discuss Revisions to
Board Policy DF (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy DF (Local) Termination of Employment.

Explanation:
The Administration recommended revisions to Board Policy DF Termination of Employment. The Administration recommends that the updated Local Board Policy DF (Local) be adopted as presented.

Policy Reference: DF Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Board's Designee for Certain Termination Actions

The Superintendent shall serve as the Board's designee to suspend a contract employee without pay, provide written notice that the person's contract is void, and terminate employment as soon as practicable when the District:

1. Receives notice that an individual's certificate has been revoked by the State Board for Educator Certification (SBEC) for reasons that require immediate action by the District; or
2. Becomes aware that a contract employee has been convicted of or has received deferred adjudication for a felony offense.

[See also DFAA, DFBA, and DFCA, as appropriate.]

Prohibited Actions

Diversity, Equity, and Inclusion Duties

District employees and contractors shall be prohibited from intentionally or knowingly engaging in or assigning to another person diversity, equity, and inclusion duties as defined in EMB (Local).

A violation of this prohibition shall be cause for appropriate discipline, including termination. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Assistance with Social Transitioning

District employees shall be prohibited from assisting a student enrolled in the District with social transitioning as defined in EMB (Local), including by providing any information about social transitioning or providing guidelines intended to assist a person with social transitioning.

331

A violation of this prohibition shall be cause for appropriate discipline, including termination. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Unless required by state or federal law, the fundamental rights granted to parents by their Creator and upheld by the United States Constitution, the Texas Constitution, and the laws of this state, including the right to direct the moral and religious training of the parent 's child, make decisions concerning the child 's education, and consent to medical, psychiatric, and psychological treatment of the parent 's child under Section 151.001, Family Code, may not be infringed on, unless the infringement is: (1) necessary to further a compelling state interest, such as providing life-saving care to a child; and (2) narrowly tailored using the least restrictive means to achieve that compelling state interest. Unless otherwise provided by law, employees shall comply with this section and may not limit parental rights or withhold information from a parent regarding the parent 's child.

A violation of this prohibition shall be cause for appropriate discipline, including termination. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Student Health Care Without Parental Consent

In accordance with S.B. 12 (89th Texas Legislature, R.S.), an employee or contractor of the district must generally obtain the written consent of a child 's parent in the manner required by law before the employee or contractor may: (1) conduct a psychological or psychiatric examination or[,] test, or psychological or psychiatric treatment, unless the examination, test, or treatment is required under Section 38.004 or state or federal law regarding requirements for special education; [or] (2) make or authorize the making of a videotape of a child or record or authorize the recording of a child 's voice; (3) unless authorized by other law: (A) disclose a child 's health or medical information to any person other than the child 's parent; or (B) collect, use, store, or disclose to any person other than the child 's parent a child 's biometric identifiers; or (4) provide health care services or medication or conduct a medical procedure.

A violation of this prohibition shall be cause for appropriate discipline, including termination. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Prohibition of Violation of Texas Education Code Section 28.0022

In accordance with S.B. 12 (89th Texas Legislature, R.S.), an employee or contractor shall not intentionally or knowingly engage in or assigns to another person an act prohibited by Texas Education Code Section 28.0022 or EMB (Local).

A violation of this prohibition shall be cause for appropriate discipline, including termination. [See DFAA, DFBA, and DFCA for procedures for discipline, including termination, as appropriate.]

Employee Rights

A contract employ disciplined under this policy must receive adequate due process and an opportunity to appeal disciplinary actions, including termination, in the same manner provided for other disciplinary actions.

Policy Notification

The District shall make available a physical and electronic copy of this Policy and procedure to each district or school employee or contractor.